

AMENDED PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

APPEARANCE REQUIRED.

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON

APPEARANCE REQUIRED: Petitioner failed to give sufficient notice of the instant hearing, and failed to serve all persons entitled to such Notice. The Court is, therefore, without jurisdiction to rule on the Petition for Appointment of Probate Conservator of the Person. The Court is inclined to CONTINUE the instant hearing to August 19, 2026, at 8:30 a.m. in Dept. B, to coincide with the hearing on the Petition for Conservatorship of the ESTATE.

However, the Court is concerned regarding the allegations of the proposed Conservatee's condition and notes that, as none of the parties appeared at the July 21, 2026, ex parte hearing, no Letters of Temporary Conservatorship of the Person have been issued. The Court would, therefore, like to hear from the parties regarding the status of the two Petitions and whether there remains a need for a temporary conservatorship.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

PLAINTIFFS' MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

TENTATIVE RULING: The motion is GRANTED. Plaintiffs are granted five Court days' leave to file a First Amended Complaint in substantially the same form as that included in Exhibit 1 to the Notice of Motion.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiffs 3840 Stonebridge, LLC (Stonebridge) and M. David Jester (Jester) move, pursuant to California Code of Civil Procedure sections 473, subdivision (a)(1) and 576, for leave to file a First Amended Complaint.

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” (Code Civ. Proc., § 473, subd. (a).) Similarly, “[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.)

The Court finds that the moving papers satisfy the procedural requirements of California Rules of Court, rule 3.1324.

Typically, a court will exercise its discretion liberally in favor of allowing amendment of the pleadings in order that litigation may be tried on its merits. (See *Kauffman v. Bobo & Wood* (1950) 99 Cal.App.2d 322, 323.)

However, in exercising its discretion, the trial court may properly consider “the conduct of the moving party and the belated presentation of the amendment [citation].” (*Bedolla v. Logan & Frazer* (1975) 52 Cal.App.3d 118, 136.) “There is a platoon of authority to the effect that a long unexcused delay is sufficient to uphold a trial judge’s decision to deny the opportunity to amend pleadings, particularly where the new amendment would interject a new issue which requires further discovery.” (*Green v. Rancho Santa Margarita Mortgage Company* (1994) 28 Cal.App.4th 686, 692.)

Defendant Matt Ospeck opposes the Motion on grounds that Plaintiffs have delayed bringing it, without valid excuse, and that he would suffer prejudice in two ways as a result of the requested filing of the amended complaint. First, Mr. Ospeck contends that the proposed amendment is an improper attempt to “back fill” the operative pleading in support of Plaintiffs’ pending Motion for Summary Judgment. Second, Mr. Ospeck contends that he has been left with insufficient time to conduct discovery regarding the novel allegations, in light of the October 15, 2026, Trial Management Conference scheduled in the action.¹

First, the Court notes that the proposed amendments are limited. They seek to clearly assert an alter-ego theory of liability against Mr. Ospeck vis-à-vis co-defendant Auburn James Winery, LLC (AJW). The proposed amendments would not add any cause of action. The Court

¹ Pursuant to Local Rule, the Trial Management Conference is considered the first day of trial for purposes of calculating trial-related dates including discovery cut-off and expert disclosure deadlines.

further notes that the operative Complaint asserts each cause of action against both Mr. Ospeck and AJW. Thus, the proposed amendment would simply add allegations to clarify that Plaintiffs seek to hold Mr. Ospeck liable for the claims on a alter-ego theory, as well as directly.

The Court is sympathetic to Mr. Ospeck’s assertion that Plaintiffs could have discovered the need to assert this theory earlier in the litigation. However, Plaintiffs present evidence that supports their argument that late-discovered facts motivated the timing of the instant Motion. (See Declaration of Lawrence Brocchini at ¶¶ 6, 7, and 10.) While it is conceivable that Plaintiffs *could have* added these allegations sooner in the litigation, given the limitation of the proposed amendment, and the evidence of the recent factual discovery, the Court does not find that the delay in doing so compels an order denying the request.

In addition, the Court is not persuaded that Mr. Ospeck will suffer prejudice by the proposed amendment. First, it *appears* to the Court that the filing of the proposed First Amended Complaint will render moot Plaintiffs’ pending Motion for Summary Judgment on their original Complaint.² (See *State Comp. Ins. Fund v. Super. Ct.* (2010) 184 Cal.App.4th 1124, 1131 [“once an amended complaint is filed, it is error to grant summary adjudication on a cause of action contained in a previous complaint”]; see *S.C. v. Doe 1* (2026) 115 Cal.App.5th 365, 384 [held: where trial court erred in denying motion for leave to amend operative complaint while motion for summary judgment was pending, “the court’s decision to grant Doe 1’s summary judgment motion was improper”].)

Second, Ospeck contends that “[t]o defend [the novel] theory, Ospeck would need, at minimum, to depose Frost and Mascali . . . to conduct document discovery concerning AJW’s books, capital contributions, and loan accounts; and to retain a forensic accountant to analyze years of transactions Plaintiffs now characterize as improper.” (Opposition at 5:1-5.) If Mr. Ospeck is not able, despite reasonable diligence, to conduct the discovery necessitated by the amendment prior to the current discovery cut-off, he may seek to continue the trial date. Plaintiffs concede the possibility without objection. (See Reply at 6:18-20 [“if the Court concludes Defendant should have additional discovery, it can continue the trial for an appropriate period, reopen discovery solely as necessary to address the amended pleading, and impose any reasonable conditions the Court deems appropriate”].)

As Ospeck notes, however, the discovery cut-off date remains nearly two months away. (See Opposition at 4:6.) The Court, therefore, finds no grounds for vacating the trial date as part of the instant Motion. The Court will, however, be receptive to any subsequent motion to continue the trial date, brought on this ground, if supported by a showing of good cause.

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² The issue is not formally before the Court. As a result, the Court does not, here, rule that the pending Motion for Summary Judgment is moot. Only that Mr. Ospeck has not shown that he would suffer prejudice on grounds relating to that motion’s pendency.

**PLAINTIFFS' MOTION TO COMPEL DEPOSITION TESTIMONY FROM DENISE
WETZEL**

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

As framed by the Notice of Motion, Plaintiffs Sally Novotny Vaziri and Susan Novotny move for an order "compelling Denise Wetzel to deposition testimony [*sic*] regarding her license suspension." (See *id.* at 1:2-6.) Plaintiffs further move for an award of monetary sanctions against Defendant Odd Fellows Home of California.

"If a deponent fails to answer any question . . . the party seeking discovery may move the court for an order compelling that answer . . ." (Code Civ. Proc., § 2025.480, subd. (a).)

"It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) . . . that civil discovery be essentially self-executing. [Citation.]' [Citation.] A self-executing discovery system is 'one that operates without judicial involvement.' [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]" (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

Given the foregoing, it is axiomatic that a party who moves the Court to intervene in a discovery dispute has a threshold burden of describing the dispute with sufficient specificity to permit the court to understand precisely what information or materials the moving party seeks to discover. Here, neither the Notice of Motion, the Support Memorandum, nor the Proposed Order clearly identify the questions that Plaintiffs seek to compel answers to, or the information sought by the instant Motion.

The Separate Statement provides that "[d]uring Wetzel's deposition, she refused to answer three questions . . ." (Separate Statement at 5:26-27.) The Court, therefore, presumes that Plaintiffs, by the instant Motion, seek to compel the deponent to answer the questions set forth at 1:22-23, 4:25, and 5:12 of the Separate Statement.

Defendant opposes the Motion arguing that "[t]he disputed questions improperly invade Ms. Wetzel's constitutional right to privacy in medical and health-related information . . ." (Opposition at 2:14-16.) Counsel for Defendant raised the privacy objection, at deposition, in